

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ADAM LITTERMAN,

Petitioner

VS.

HANA LITTERMAN,

Respondent

) Case Number: FDI-23-797608

) Hearing Date: August 25, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE CHANGE OF CHILD SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Adam Litterman (Father) and Respondent Hana Litterman (Mother). They share two minor children: Isadora (DOB: 9/18/26) and Charles (DOB: 11/22/19).
- 2) The parties share joint legal and joint physical custody of the minor children with a 50/50 parenting time schedule.
- 3) On 7/22/24, the Court entered the parties' Stipulated Dissolution Judgment, which, in pertinent part, set child support to \$0 monthly and included a \$1,450,000 equalizing payment to Mother from Father as a buyout of spousal support and resolution of all issues.
- 4) On 2/13/26, Mother filed a Request for Order seeking modification of child support and \$100,000 in attorney's fees and costs pursuant to Family Code section 2030. Mother requests the Court order guideline child support, reserve over child support retroactively, and permit discovery so Mother can determine Father's income available for support. Mother states Father earns a substantial income and has a trust that contributes to his expenses. Mother alleges a significant disparity in income between the parties. Mother asserts that she is a dentist but worked on a

1 limited basis during marriage because Father financially supported the parties. Mother claims
2 financial hardship in her current dental practice due to the dental insurance industry. Attached to
3 Mother's Request for Order is a Memorandum of Points and Authorities and declaration of
4 counsel substantiating her request for attorney's fees and costs.

5 5) On 2/13/26, Mother filed an Income and Expense Declaration.

6 6) On 7/31/26, Mother filed a supplemental declaration augmenting her request for Family Code
7 section 2030 attorney's fees to \$175,000. Attached is a declaration of CPA, Christina Humason,
8 which includes an XSpouse report showing guideline child support as \$8,822 per month (see
9 Exhibit G).

10 7) On 7/31/26, Mother filed an updated Income and Expense Declaration.

11 8) On 8/12/26, Father filed a Responsive Declaration in opposition to Mother's Request for Order.

12 Father states he is willing to pay child support in addition to covering 100% of the minor
13 children's private school tuition. However, Father asserts that Mother understates her own income
14 by claiming to earn nothing from her dental practice and omitting mention of her rent-free
15 housing. Father alleges Mother simultaneously overstates his income by including a job at UCSF
16 that ended and trust distributions over which he has no control. Father requests support be
17 calculated on Mother's representation of her income in an attached loan application from
18 September 2024 (\$14,083 per month) or that Mother be ordered to undergo a vocational
19 evaluation.

20 9) On 8/12/26, Father filed a Memorandum of Points and Authorities.

21 10) On 8/12/26, Father filed an Income and Expense Declaration.

22 11) On 8/12/26, Father filed a declaration of CPA, Lee Ann Horton, which attaches an XSpouse
23 report showing guideline child support as \$6,166 per month (see Exhibit 2 and Exhibit 3).

24 12) On 8/1/8/26, Mother filed a Reply Declaration asserting that Father's trust distributions are
25 consistent and should be included in a child support calculation. Mother's states that in 2025 her
26 dental practice lost in money and her actual monthly cash flow is \$2,301 per month. Attached to
27 Mother's Reply Declaration is a Memorandum of Points and Authorities and declaration of
28 counsel substantiating her request for attorney's fees and costs. Also attached is a declaration of
29

CPA, Christina Humason, which includes an XSpouse report showing guideline child support as \$9,781 per month (see Exhibit D).

B. Findings and Order

- 1) Mother's request for modification of child support is GRANTED.
- 2) Effective 2/13/26 (i.e., the filing date of Mother's Request for Order), and in accordance with the XSpouse report attached hereto and incorporated herein, Father shall pay Mother \$8,823 per month by the 1st of every month.
- 3) The XSpouse report is based on the following findings and inputs:
 - a. Both parties file as head of household, with each party claiming one child.
 - b. Both parties have two tax exemptions.
 - c. There are two children, with a 50/50 timeshare.
 - d. Mother's total monthly income is \$2,301 per month.
 - e. Mother's 401(k) contributions are \$77 per month.
 - f. Mother's property tax deduction is \$256 per month.
 - g. Mother's deducted interest expense is \$2,388 per month.
 - h. Father's base wage income is \$23,333 per month.
 - i. Father's 401(k) contributions are \$233 per month.
 - j. Father's health insurance is \$290 per month.
 - k. Father's property tax deduction is \$3,641 per month.
 - l. Father receives \$38,328 per month in average trust distributions, which is his monthly distribution reduced by the private school tuition he pays for the minor children.
- 4) As and for additional support, Father shall pay to Mother a percentage of any and all income, compensation, or remuneration earned above Father's \$23,333 in base gross monthly income, as set forth in the Smith/Ostler bonus table attached to the XSpouse report. Additional support shall be paid within 10 days of receipt. Father shall provide at the same time as payment documentation showing the excess gross income received and the calculation providing the basis for the Smith/Ostler support owed.
- 5) The parties shall meet and confer regarding the amount of child support arrears Father owes Mother based on the orders made herein.

- 1 6) Father's request for Mother to undergo a vocational evaluation is GRANTED. Father is permitted
2 to select the vocational evaluator and shall be responsible for 100% of the fees associated with the
3 vocational evaluation.
- 4 7) The Court reserves jurisdiction to modify child support retroactive to 2/13/26.
- 5 8) Mother's request for Family Codes section 2030 attorney's fees is GRANTED in the amount of
6 \$50,000.
- 7 9) The attached XSpouse report shows that, after support is paid, Father will have 80% of the
8 parties' combined net spendable income while Mother will have 20% of the parties' combined net
9 spendable income. As such, the Court finds there is a disparity in income and access to funds to
10 maintain counsel based on the parties' respective percentage of combined net spendable income;
11 therefore, an award of attorney's fees and costs is appropriate here.
- 12 10) The Court further finds Father is reasonably likely to have the ability to pay for legal
13 representation for both parties partly because he reports \$14,324.63 in cash and checking
14 accounts and \$478,850 in easily saleable funds. In addition, Father reports monthly expenses of
15 \$28,224 which are significantly lower than his monthly cash flow set forth above. See Father's
16 Income and Expense Declaration filed 8/12/26.
- 17 11) Finally, the Court finds \$50,000 in attorney's fees and costs is reasonable and necessary.
- 18 12) Counsel for Mother shall prepare the Findings and Order After Hearing.
- 19 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
20 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
21 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
22 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
23 proposed order after hearing directly to the court. Failure to submit the order after hearing within
24 10 days may allow the other party to prepare a proposed order and submit it to the court in
25 accordance with CA Rules of Court, Rule 5.125(d).
- 26
27
28
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2026

Fixed Shares

	Father	Mother
Number of children	1	1
Percent time with NCP Filing status	49.99% HH/MLA	49.99% HH/MLA
Number of exemptions	2	2
Wages and salary	23333	1542
Self employed income	0	0
Other taxable income	0	722
TANF CS received	0	0
Other nontaxable income	38328	37
New spouse income	0	0
Employee 401-k contribution	233	77
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	290	0
Other medical expenses	0	0
Property tax expenses	0	256
Ded interest expense	3641	2388
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA

Monthly Figures 2026

GUIDELINE

Nets (adjusted)

Father	54832
Mother	2642
Total	57474
Support	
Addons	0
Guideln CS	8823
S.Clara SS	0
Total	8823

Settings changed

Proposed

Tactic 9

CS	8810
SS	0
Total	8810
Saving	19
Releases	-1

Monthly Figures Cash Flow

Guideline Proposed

Combined net spendable	57474	57493
Percent change	0%	0%
Father		
Payment cost/benefit	-8823	-8838
Net spendable income	46009	45994
Change from guideline	0	-15
% of combined spendable	80%	80%
% of saving over guideline	0%	-77%
Total taxes	6539	6567
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	14768	14768
Mother		
Payment cost/benefit	8823	8857
Net spendable income	11465	11499
Change from guideline	0	34
% of combined spendable	20%	20%
% of saving over guideline	0%	177%
Total taxes	-341	-388
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	1302	1302

Father pays Guideline CS, Proposed CS

FC 4055 checking: **ON**

Per Child Information

DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children	50 - 50	0	0	0 Father	8,823 Father	8,823 Father
0000-00-00	50 - 50	0	0	0 Father	3,308 Father	3,308 Father
0000-00-00	49 - 51	0	0	0 Father	5,515 Father	5,515 Father

ANNUAL BONUS INCOME FATHER

Annual bonus paid to Mother

0

OFF

(0 = default steps)

Bonus amounts from: 0 to: 1000000 Step: 20000

Additional Cost to Father						Total CS	Total SS (adjusted)
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$			
0	0.00	0	0.00	0	0	0	0
20000	8.55	1710	0.00	0	107585	0	0
40000	8.55	3418	0.00	0	109294	0	0
60000	8.46	5074	0.00	0	110949	0	0
80000	8.38	6702	0.00	0	112578	0	0
100000	8.33	8331	0.00	0	114206	0	0
120000	8.29	9951	0.00	0	115826	0	0
140000	8.26	11558	0.00	0	117433	0	0
160000	8.23	13165	0.00	0	119040	0	0
180000	8.21	14771	0.00	0	120646	0	0
200000	8.18	16351	0.00	0	122226	0	0
220000	8.11	17844	0.00	0	123720	0	0
240000	7.98	19151	0.00	0	125026	0	0
260000	7.82	20338	0.00	0	126213	0	0
280000	7.69	21521	0.00	0	127396	0	0
300000	7.56	22676	0.00	0	128552	0	0
320000	7.45	23833	0.00	0	129708	0	0
340000	7.40	25161	0.00	0	131036	0	0
360000	7.40	26628	0.00	0	132503	0	0
380000	7.38	28043	0.00	0	133919	0	0
400000	7.36	29424	0.00	0	135299	0	0
420000	7.33	30795	0.00	0	136671	0	0
440000	7.31	32172	0.00	0	138048	0	0
460000	7.29	33549	0.00	0	139424	0	0
480000	7.28	34926	0.00	0	140801	0	0
500000	7.26	36302	0.00	0	142177	0	0
520000	7.25	37678	0.00	0	143553	0	0
540000	7.23	39054	0.00	0	144929	0	0
560000	7.22	40429	0.00	0	146304	0	0
580000	7.21	41804	0.00	0	147680	0	0
600000	7.20	43179	0.00	0	149055	0	0
620000	7.19	44554	0.00	0	150430	0	0
640000	7.18	45929	0.00	0	151804	0	0
660000	7.17	47318	0.00	0	153193	0	0
680000	7.16	48712	0.00	0	154587	0	0
700000	7.16	50106	0.00	0	155981	0	0
720000	7.15	51500	0.00	0	157375	0	0

Cost is an increase in support paid or a decrease in support received by this spouse

R = recipient of support

Bonus income may reverse direction of CS and/or SS

ANNUAL BONUS INCOME FATHER

Annual bonus paid to Mother

0

OFF

(0 = default steps)

Bonus amounts from: 0 to: 1000000 Step: 20000

Additional Cost to Father						Total CS	Total SS (adjusted)
Father's Bonus	Child Support % of bonus	\$	Spousal Support % of bonus	\$			
280000	7.69	21521	0.00	0		127396	0
300000	7.56	22676	0.00	0		128552	0
320000	7.45	23833	0.00	0		129708	0
340000	7.40	25161	0.00	0		131036	0
360000	7.40	26628	0.00	0		132503	0
380000	7.38	28043	0.00	0		133919	0
400000	7.36	29424	0.00	0		135299	0
420000	7.33	30795	0.00	0		136671	0
440000	7.31	32172	0.00	0		138048	0
460000	7.29	33549	0.00	0		139424	0
480000	7.28	34926	0.00	0		140801	0
500000	7.26	36302	0.00	0		142177	0
520000	7.25	37678	0.00	0		143553	0
540000	7.23	39054	0.00	0		144929	0
560000	7.22	40429	0.00	0		146304	0
580000	7.21	41804	0.00	0		147680	0
600000	7.20	43179	0.00	0		149055	0
620000	7.19	44554	0.00	0		150430	0
640000	7.18	45929	0.00	0		151804	0
660000	7.17	47318	0.00	0		153193	0
680000	7.16	48712	0.00	0		154587	0
700000	7.16	50106	0.00	0		155981	0
720000	7.15	51500	0.00	0		157375	0
740000	7.15	52885	0.00	0		158760	0
760000	7.14	54249	0.00	0		160125	0
780000	7.13	55610	0.00	0		161485	0
800000	7.12	56945	0.00	0		162820	0
820000	7.11	58279	0.00	0		164154	0
840000	7.10	59614	0.00	0		165489	0
860000	7.09	60948	0.00	0		166824	0
880000	7.08	62283	0.00	0		168158	0
900000	7.07	63617	0.00	0		169492	0
920000	7.06	64951	0.00	0		170826	0
940000	7.05	66285	0.00	0		172160	0
960000	7.04	67619	0.00	0		173494	0
980000	7.04	68953	0.00	0		174828	0
1000000	7.03	70286	0.00	0		176162	0

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R = recipient of support

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